

THE UNITED REPUBLIC OF TANZANIA
THE JUDICIARY OF TANZANIA
IN THE HIGH COURT OF THE UNITED REPUBLIC OF TANZANIA
KATAVI SUB - REGISTRY

AT MPANDA

ECONOMIC APPEAL NO. 15244 OF 2026

(Originates from the District Court of Mlele in Economic Case No.000015842 of 2023)

BETWEEN

SONGO DAVID JACKOBO APPELLANT

VERSUS

REPUBLIC DEFENDANT

JUDGMENT

13/08/2026 & 02/09/2026

Isaya, J.:

In the District Court of Mlele at Mlele (hereinafter “the trial Court”) the appellant, Songo David Jackobo stood charged with the offence of Unlawful Possession of Government Trophies contrary to section 86(1) and (2)(b) of the Wildlife Conservation Act [Cap.283 of 2022, (now RE 2023], read together with paragraph 14 of the First Schedule thereto and section 57(1) and 61(2) of the Economic and Organized Crime Control Act [Cap. 200 RE 2023].

It was averred that on 15th June, 2025, at Chamalendi Village, Mlele District, Katavi Region, the appellant was found in possession of an elephant ear valued at USD 20,000/-, equivalent to TZS 51,720,000/-, property of the

Government of the United Republic of Tanzania, without a permit from the Director of Wildlife. The appellant denied the charge, resulting in a full trial.

After analysis of the prosecution and defence evidence, the trial court was convinced that the case against the appellant was established beyond reasonable doubt. Consequently, it found the appellant guilty and sentenced him to twenty years in prison. Dissatisfied with the conviction and sentence, the appellant filed this appeal. For reasons that will soon become clear, I will not reproduce the grounds of appeal listed in the petition.

The background facts giving rise to this appeal may be briefly stated as follows: On 15th June, 2025, Boniface Magani (PW4), a conservancy officer with the Tanzania National Parks Authority (TANAPA), received information from a secret informer about the presence of government trophies in Mahimba Suburb, Chamelendi Village. Accompanied by Inspector Sadi Kambona (PW6), Mohamed Limahela, Japhet Gasper, Raymond Venance Mwanjoka (PW5) and Kaji Mahema Hendi, they headed to Chamelendi Village. Upon arrival, they secured Ladislaus Munguajua (PW7), a Village Executive Officer, who escorted them to the appellant's house in Mahimba Suburb. Upon reaching the appellant's house, the VEO (PW7) knocked on the door. After the appellant opened the door, they introduced themselves

and informed him of the purpose of their visit. They asked whether he possessed any government trophies; the appellant replied that he had none.

They asked the appellant to allow them to search his house, and during the search, they found an animal ear suspected to be from a wild animal. They later identified the ear as an elephant ear, kept in a green nylon bag, and admitted it into evidence as Exhibit P3. They also found the appellant with 4 knives kept in a nylon bag with whitish strips (Exhibit P4 collectively). Thereafter, Inspector Kambona (PW6) prepared a seizure certificate, which he signed, along with PW7 (the Village Executive Officer) and the appellant. The seizure certificate was tendered and admitted into evidence as Exhibit P5.

After establishing that the appellant did not have a permit to possess Government trophies, on the same day, 15th June, 2025, they took him to Majimoto Police Station, where the police registered the case as No. MTO/IR/326/2026. The police then handed the seized items over to G.4303 SGT Duus (PW2), a policeman and custodian of exhibits at Majimoto Police Station. PW2 testified that he kept the said exhibits until 16/06/2025, when he handed them over to CPL Tedison, who took them to the government valuer (PW1) for identification and valuation. On the same day, 16/06/2025, the exhibits were returned to him, and he kept them until 20/06/2025, when

he transmitted them to Inyonga Police Station and handed them to D/CPL Florence (PW3), custodian of exhibits at Inyonga Police Station.

On 16th June, 2025 the trophies were taken to Zacharia Stephano Mjengi (PW1), a government trophies identification expert and valuer, to identify and determine the value of the impounded government trophy. PW1 testified to have received the said exhibits through a chain of custody (Exhibit P2) from Tedison. Upon inspection, PW1 identified the trophy as an elephant ear by its unique features: huge, wide, and with a thick layer of meat. Upon valuation, it was worth USD 20,000/-, equivalent to TZS 51,720,000/-. He then prepared a valuation certificate (Exhibit P1).

In his defence, the appellant denied being found in possession of a purported government trophy. He described the charges brought against him at trial as false, asserting that he did not commit any offence relating to possession of government trophies. Despite the appellant's defence, the trial court was satisfied that the prosecution proved the charge beyond doubt. The appellant was thus convicted and sentenced accordingly, as stated hereinabove. The trial court's decision and sentence gave rise to the present appeal.

At the hearing of this appeal, the appellant appeared in person, virtually from Mpanda Prisons, while the Respondent/Republic was

represented by Mr. Theophil Mutakyawa, Principal State Attorney. When invited to submit on his grounds of appeal, the appellant had little to submit. He invited this Court to consider his grounds of appeal as contained in his Petition of Appeal, which he considered self-explanatory and prayed that the outcome of this appeal be in his favour.

Mr. Mutakyawa promptly informed the Court that he fully supports this appeal. He argued that the evidence against the appellant was not proven beyond a reasonable doubt at trial, particularly on the issues raised under the 1st and 6th grounds of appeal, which concerned the search. He submitted that the power to issue a written search warrant or authority is exclusively vested in a police officer in charge of a police station. He can do so if he is satisfied that there are reasonable grounds to suspect that evidence or items connected to an offence are present in a specific place, and that waiting for a court warrant would cause a dangerous delay (such as the removal or hiding of evidence). This is by virtue of **section 39 of the Criminal Procedure Act (Cap.20 RE 2023) (hereinafter “the CPA”)**

The learned Principal State Attorney pointed out that the testimony of PW6, found at page 65 of the trial court typed proceedings, is to the effect that his boss ordered him to go to Chamalendi village to conduct a search. However, a thorough review reveals that the name appearing in the search

warrant is his name (PW6's name), who is not the Police officer in charge of the Police station (OCS). As a result, the entire search was conducted in contravention of **section 39 of the CPA**. He therefore argued that the failure to comply with the laid-down procedures regarding the search rendered the offence charged not proved beyond a reasonable doubt against the appellant. To reinforce his position, he cited the case of **Baven Hamis and Others vs Republic** (Criminal Appeal No. 99 of 2014) [2016] TZCA 2149 (31 May 2016) – TanzLii, and **Ayubu Mfaume Kiboko & Another vs Republic** (Criminal Appeal No. 694 of 2020) [2022] TZCA 121 (17 March 2022) - TanzLii, where the Courts demonstrated the procedures on how searches are to be conducted. Having so submitted, he supported the appeal.

When this Court asked the appellant whether he had any comments after hearing the submissions of the learned State Attorney, he told this Court that he had nothing to add.

I have serenely studied the trial court's records and the arguments advanced by Mr. Mutakyawa, the learned Principal State Attorney. I am convinced to agree with him that the offence against the appellant was not proved beyond reasonable doubt during trial.

As a starting point, I should observe and agree that the law regulates searches and seizures. The purpose of laying down procedures is to facilitate searches and seizures and to protect evidence that may be used in a trial. Sections 39 to 46 of the CPA set out the procedures for conducting searches and seizures. There is no gainsaying that unless searches and seizures are conducted in accordance with the laid-down procedures, they will not carry weight at trial. Generally, a search must be preceded by written authority, either a search order issued by a police officer in charge of a police station by virtue of section 39(1) of the CPA) or a search warrant issued by a court. Anything seized must be done in pursuance of such powers or authority given by the person possessing such powers. In the present case, the search order was not issued by the Police Officer in Charge of a Police Station, as the Learned Principal State Attorney rightly observed. This anomaly clearly indicates that the case against the appellant was substantially initiated on a search that was conducted in violation of an important procedure. As such, the appellant could not possibly be found guilty.

Apart from what the Learned Principal State Attorney observed, I also noted an irregularity in the chain of custody in this case. The principle of chain of custody is rooted in **section 39(3) of the CPA**, as well as Police General Order 229. Its purpose is to preserve evidence so as to minimize the

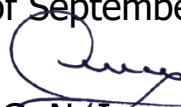
possibility of its being tampered with and thereby avoiding planted evidence (see **Baven Hamis and Others vs Republic** (Criminal Appeal No. 99 of 2014) [2016] TZCA 2149 (31 May 2016) – Tanzlii. In the instant case, PW1 testified that he received the exhibits for identification and valuation from **CPL Tedson**. Nevertheless, the records clearly show that **CPL Tedson** was not paraded before the court to adduce evidence. The failure to parade him as the person who handled the exhibits clearly indicates that the chain of custody broke down. Although the law is now settled that oral evidence is sufficient to prove the chain of custody of the exhibits, this did not seem to be the case in the instant appeal.

In conclusion, I find that the prosecution did not sufficiently prove the charge against the appellant beyond reasonable doubt at trial. Accordingly, I find this appeal justified and allow it. As a result, the trial court's conviction and sentence are hereby annulled and set aside. This court orders the immediate release of the appellant from prison, unless they are being held there for a lawful reason.

Ordered accordingly.

Dated at KATAVI this 02nd day of September,2026




G. N. Isaya,

Judge

02nd September,2026

Court: Judgment delivered on this 02nd September,2026 in the presence of Mr. Theophil Mutakyawa, Learned Principal State Attorney for the Respondent, and in the presence of the Appellant in person virtually from Mpanda Prisons. B/C; Robert Mgata and Hon. Mohamed Shabani (JLA)

The right to further appeal is fully explained.




G. N. Isaya,

Judge

02nd September,2026